

23SMCV04140 23SMCV04140

County: los-angeles

Division: Civil Law and Motion

Department: 207

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Case Number: 23SMCV04140 Hearing Date: August 3, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

3, 2026

CASE NUMBER

23SMCV04140

MOTION

Motion

to be Relieved as Counsel

MOVING PARTIES

Kyle

Petersen of Loeb & Loeb LLP

OPPOSING PARTY

(none)

MOTION

Kyle Petersen of Loeb & Loeb LLP,
counsel for Defendant Tyson Beem, Trustee of the Maxamillion Trust Dated
2/11/13 ("Counsel") moves to be relieved as counsel, citing a breakdown of the
attorney-client relationship. The motion
is unopposed.

LEGAL

STANDARD

Code of Civil Procedure section 284 provides "[t]he attorney in an
action or special proceeding may be changed at any time before or after
judgment or final determination as follows: 1. Upon the consent of both client
and attorney, filed with the clerk, or entered in the minutes; 2. Upon the
order of the court, upon the application of either client or attorney, after
notice from one to the other."

Procedural Requirements

California Rules of Court, rule 3.1362, requires:

(1) the motion must be made on
form MC-051; (subd. (a));

(2) it must be accompanied by
a declaration on form MC-052 stating why the motion is brought under Code of
Civil Procedure section 284(2) instead of a consent brought under section
284(1); (subd. (c));

(3) a proposed order on form
MC-053 must be lodged with the court, specifying all hearing dates scheduled in
the action or proceeding, including the date of trial, if known; (subd. (e));
and

(4) The documents must be
served on the client and on all parties that have appeared in the case. (subd.
(d).)

If

the notice is served by mail or electronic service, it must be accompanied by a declaration indicating that the address served is the current address, or in the case of service by mail, that it was served on the last known address and a more current address could not be located after reasonable efforts within 30 days before filing the motion. (Ibid.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.”

(Ibid.)

Substantive Requirements

Rules of Professional Conduct, rule 1.16(a) outlines the reasons a lawyer must withdraw from representation of a client:

(1) the

client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person;

(2) the

representation will result in violation of the Rules of Professional Conduct or the State Bar Act;

(3) the

lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or

(4) the

client discharges the lawyer.

Rules of Professional Conduct, rule 1.16(b) outlines the reasons a lawyer may withdraw from representation of a client:

(1) the

client insists upon presenting a claim or defense in litigation, or asserting a position or making a demand in a non-litigation matter, that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law;

(2) the

client either seeks to pursue a criminal or fraudulent course of conduct or has used the lawyer's services to advance a course of conduct that the lawyer reasonably believes was a crime or fraud;

(3) the

client insists that the lawyer pursue a course of conduct that is criminal or fraudulent;

(4) the

client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;

(5) the

client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;

(6) the

client knowingly and freely assents to termination of the representation;

(7) the

inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal;

(8) the

lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively;

(9) a

continuation of the representation is likely to result in a violation of these rules or the State Bar Act; or

(10)

the lawyer believes in good faith in a proceeding pending before a tribunal that the tribunal will find the existence of other good cause for withdrawal.

DISCUSSION

Counsel have filed forms MC-051, MC-052, and MC-053. The attorney declarations (MC-052) indicate that the motion was filed instead of filing a consent because:

Loeb & Loeb LLP has represented Defendant Tyson Beem, Trustee of the Maxamillion Trust Dated February 11, 2013 ("Beem") in the above captioned action. Attorney William Brody--who is no longer with Loeb & Loeb--was lead counsel and is designated as counsel of record on the Court's docket, though I have also appeared in this action. Loeb & Loeb moves to be relieved as Beem's counsel because there has been a breakdown of the attorney-client relationship, there are disputes regarding the client's retention of Loeb & Loeb, and it is no longer reasonable for Loeb & Loeb to continue representing the client in this matter. The client has not responded to recent communications from Loeb & Loeb, including with respect to Loeb & Loeb's withdrawal and this motion.

(MC-052 at ¶ 2.) As such, the Court finds that the motion complies with the Rules of Professional Conduct, rule 1.16(b)(4).)

The proof of service indicates each of the requisite forms were served electronically and by mail on the client and electronically on counsel for the other parties to the litigation. The attorney declaration further indicates that the client's business address has been confirmed current within the past 30 days with the client. (MC-052, ¶ 3.) Therefore, the Court finds the motion to be procedurally proper.

CONCLUSION

AND ORDER

Having found the Motion both procedurally and substantively proper, the Court Grants Counsel's Motion to be Relieved as Counsel.

Counsel must serve the signed order (form MC-053), which shall include information about all future hearings and proceedings noticed by any party, or ordered by the Court, on the clients and all other parties who have appeared in

the action, within 10 days of the date of this Order, and file a proof of service of such. Counsel will remain the attorney of record for Defendant Tyson Beem, Trustee of the Maxamillion Trust Dated February 11, 2013 until Counsel files the requisite proof(s) of service. (See Cal. Rules of Court, rule 3.1362(e).)

Further, to ensure that the Court's records are updated following the filing of the proof(s) of service, Counsel shall contact the Court to advise that the proof(s) of service has been filed.

DATED: August 3, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court